

25STCP03308 25STCP03308

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-08-07

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Case Number: 25STCP03308 Hearing Date: August 7, 2026 Dept: 833

Tanisha Floyd, Case No. 25STCP03308

Hearing:

August 7, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Los

Angeles County Civil Service Judge:

Joseph Lipner

Commission

and County of Los Angeles

Order Denying Petition

for Writ of Mandate

INTRODUCTION

Petitioner Tanisha Floyd ("Petitioner") moves

for a writ of mandate directing the Court to overturn the Los Angeles Civil

Service Commission's ("Respondent") decision upholding the decision by real-party-in-interest

Los Angeles County Department of Health Services ("Department") to dismiss

Petitioner.

The Court DENIES the petition for writ of mandate.

BACKGROUND

A.

Employment

Background

Petitioner began her County service in April 2001. (AR 102.) As of September 1, 2020, Petitioner held the position of Intermediate Clerk in the Department of Public Services. (AR 102.)

Petitioner was terminated on February 21, 2023. (AR 102.)

In its Notice of Discharge, the County identified the basis of Petitioner's termination as falsified medical certification, as well as excessive and "patterned" absenteeism. (AR 503.) The notice documented that, between September 4, 2020 and September 30, 2022, Petitioner accumulated 42 incidents of unscheduled absences, 2 incidents of unauthorized absences, and 24 instances of patterned absences. (AR 509.) Additionally, on December 29, 2020, Wasim Girgis, Supervising Clinic Nurse, reporting to Human Resources that Petitioner had been off work without authorization since December 14, 2020. (AR 510.) On January 4, 2021, Petitioner returned to work, and submitted two medical certifications from Kaiser Permanente that indicated Petitioner was placed off work by her medical provider. (AR 510.) In reliance on that document, the Department reclassified those days from "Unauthorized Absence Without Pay" to "Sick Time" and paid Ms. Floyd slightly more than \$400. (AR 104–105.) Kaiser later informed the Department that one medical certification could not be substantiated. (AR 510.) The Kaiser witness testified that one of the medical certification notes was "inconsistent" with Kaiser's records and that it looked "altered." (AR 573-574.) Petitioner later informed the Department that she had been out of the office due to factors related to the COVID pandemic. (AR 511.) The Department concluded that Petitioner had submitted false medical certificates to excuse absences from work and receive benefits. (AR 512.)

Chief Nursing Officer Nancy Blaker decided that dismissal was proper given the egregious submission of a false record with

the risk of liability attendant any future falsification of a record by someone in Petitioner's position. (AR 107.) Blaker also explained that Petitioner's many patterned absences^[1] added stress on providing clinical care and added to the overall egregiousness of Petitioner's conduct. (AR 107.)

Petitioner appealed her decision to the Los Angeles Civil Service Commission. (AR 1-5.)

The Commission certified two issues for hearing: (1) whether the allegations in the February 21, 2023 letter were true, and (2) if so, whether the discipline was appropriate, with the burden of proof on the Department as to both. (AR 102.)

During the appeal, Petitioner proffered no exhibits into evidence. (AR 101.) On October 21, 2024, a hearing officer issued proposed findings of fact, conclusions of law, and a recommended decision sustaining the discharge. (AR 100-110.) On May 28, 2025, the Commission adopted the Hearing Officer's recommendation as its final decision. (AR 255-263.)

On May 28, 2025, the Commission sustained Petitioner's discharge.

The petition followed.

LEGAL STANDARD

Under Code of Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

Because the decision to discharge Petitioner concerns a fundamental vested right, the independent judgment standard applies to the factual findings made

by Respondent. (See *Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 314.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (*Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143.) The court may draw its own reasonable inferences from the evidence and make its determinations as to the credibility of witnesses. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal. App. 4th 860, 868.) “In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817; see also Evid. Code § 664.)

Petitioner bears the burden of proof to demonstrate, by citation to the administrative record, that the weight of the evidence does not support the administrative findings. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32; *Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal. App. 2d 129, 137.) Petitioner “must identify (with citations to the record) the factual findings made by the board that he or she is challenging and demonstrate (with citations to the record) why those factual findings were against the weight of the evidence.” (*Shenouda v. Veterinary Medical Bd.* (2018) 27 Cal.App.5th 500, 513.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (*Fox v. Erickson* (1950) 99 Cal.App.2d 740, 742 (Fox).) When an appellant challenges “the sufficiency of the evidence, all material evidence on the point must be set forth and not merely [his] own evidence.” (*Toigo v. Town of Ross* (1998) 70 Cal.App.4th 309, 317.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (*Christensen v. Lightbourne* (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See *State Farm Mut. Auto. Ins. Co. v. Quackenbush* (1999) 77 Cal.App.4th 65, 77.) In addition, “[a] challenge to

the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (Nasha L.L.C. v. City of Los Angeles (2004) 125 Cal.App.4th 470, 482.)

DISCUSSION

A.

Petitioner received a fair hearing

Petitioner's first argument is that she was denied a fair hearing when the Hearing Officer excluded material, exculpatory evidence bearing on what she asserts is the sole dispositive issue. (Opening Brief “OB”, 8:11-12.)

Petitioner argues that the only material question in the case was whether the medical certification was a knowing falsification or an innocent database discrepancy. (OB, 6:19-27; 8:21-22.) Petitioner sought to ask the witness from Kaiser more information about whether the medical certification was a falsification or a database issue, but the hearing officer sustained an objection to the question on privilege and HIPPA grounds. (AR 574-577.) Petitioner argues that her inability to question the Kaiser witness means she was not given a fair hearing. (OB 9:1-10.)

The Court disagrees. First, Petitioner is incorrect that the allegedly fake medical certification was the sole basis for her discharge. The first basis listed on the termination form was actually Petitioner's perpetual absenteeism. (AR 503.) Petitioner does not offer any argument or evidence that questioning the Kaiser witness would have addressed absenteeism.

Second, exercising its independent judgment, the Court concludes that Petitioner abandoned her interest in questioning the Kaiser witness. The Department explained that they would be more than amenable to Petitioner waiving HIPPA and privilege, but they wanted to engage in a meet and confer first. (AR 575-576.) The Department also expressed a concern that a waiver in the middle of testimony when Petitioner had refused ever to do so before the hearing would be procedurally unfair to the Department. (AR 575.) A meet and confer would allow both parties to review

what would and would not be admissible in the proceeding before moving forward. (AR 577.) The hearing officer confirmed that he was open to counsel coming back to him with something on the question of questioning the Kaiser witness. (AR 577.) There is no evidence in the record that Petitioner came back with anything. Rather, the record suggests Floyd abandoned the issue. Indeed, the issue of Petitioner waiving HIPPA came up on May 1, 2024. (AR 541.) The last day evidence was taken was August 15, 2024. (AR 687.) Petitioner could have addressed the HIPPA and privilege issue at any point between May 1 and August 15, but did not do so. "Where a party by his conduct induces the commission of error, he is estopped from asserting it as a ground for reversal on appeal." (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 403.) Because Petitioner did not take steps to address the HIPPA and privilege issue, Petitioner is estopped from asserting the HIPPA and privilege issue on appeal.

Petitioner also argues that a corroborating physician's note she submitted with her closing brief would have shown that the medical certification was not falsified. (OB, 7:12-13.) The note had a printed date of 1/26/2022 and a purported initialization hand-dated 2/1/23. (AR 106.) Petitioner complains that there was not an opportunity to substantiate this record, so attached this note to her closing brief. (AR 106; OB, 7:14-15.) Petitioner did not even attempt to introduce this record into evidence, and so cannot now argue that it should have been considered at closing statements when the Department could not respond or offer contrary evidence. (AR 101.) Petitioner's argument that she was required to wait until closing to submit the note because the Hearing Officer cut off testimony of a Kaiser witness (OB, 10:2-3; Reply 8:3-15) is a non-sequitur that makes little sense. Alleged substantiation by a treating doctor is something any person in Petitioner's position would know should be submitted in evidence before the hearing closed; the need to do so did not depend on the exclusion of other evidence.

Moreover, the allegedly corroborating physician's note also does not purport to address the falsity of the content in the original January 4, 2021 medical certification that Petitioner initially gave to her employer. (AR 106.) Nor did it, standing on its own, meet the requirements for proof of medical absence. (AR 106.) Exercising its independent judgment, the Court concludes that Petitioner was not denied a fair trial because of her own failure to introduce this note at the hearing.

Petitioner has not met her burden

for the Court to grant this petition.

B.

CONCLUSION

The Court DENIES the petition for writ of mandate.

Pursuant to Local Rule 3.231, subd. (n), the Department shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: August 7,
2026

Joseph
Lipner

Superior
Court Judge

[1] Patterned absences are absences that occur after the employee's day off, or if an employee had a vacation, the absence occurs after the vacation. (AR 603.)